

REPUBLIC OF KENYA



MINISTRY OF GENDER, CULTURE AND CHILDREN SERVICES STATE DEPARTMENT FOR CHILDREN WELFARE SERVICES STATE DEPARTMENT FOR CHILDREN'S SERVICES (SDCS)

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SUB-COUNTY CHILDREN'S OFFICE,
P.O. BOX 663 - 00204
ATHI-RIVER, MACHAKOS

CHILDREN'S DEPARTMENT SOCIAL INQUIRY REPORT

Name: **KELVIN NAMOYE MUETI**.

DATE: 1ST/SEPTEMBER/2025

Serial No: **CCO/16/80/5/29/5276/2025** (C.P.M.I.S)

Date to Court: **2ND/September/2025**

Case referred by: **MAVOKO LAW COURTS**.

Case no: **E725/2025**

Police Case Number: **303/2025**

C.P.I.M.S PERSON I.D: **5233873**

PATRICULARS: Child Offender.

PERSONAL DETAILS OF THE CHILD

Name of the child: KELVIN NAMOYE MUETI

Age: 16 YEARS.

Sex: Male.

D.O.B: 7th/Dec/2009

Nationality: Kenyan

Religion: Christian

Occupation: Was a form 2 drop out.

Source of information: For the purpose of this report the following people were reached for interview. The I.O; Richard Ondiba (072042671) and the subject himself.

Level of education: Was a Form 2 dropout.

The subject's health status: He is of good health.

HOME PARTICULARS OF THE CHILD

County: **Isiolo.**

District: **Isiolo North**

Division:

Location:

Sub Location:

Village: **Ngaremara Village.**

Name of Chief:

Name of Assistant chief:

Name of Village Elder:

Nearest Church/Mosque:

Nearest School: **Isiolo Boys.**

Nearest Market: **Isiolo Market.**

Nearest Police Station: **Isiolo Police Station.**

FAMILY BACKGROUND

The subject used to live with friends here and there after he dropped out of school owing to internal wrangles that erupted in the C.C.I he was initially committed in, he however has one younger sibling listed below. He has also claimed that both of his parents are deceased and the only living relative is the aunt who lives in Isiolo.

Other Sibling:

NAME	AGE	GENDER	(C.P.M.I.S SIBLING I.D)
1. LILIAN IBONE	10 YEARS	FEMALE	5233874

CASE HISTORY OF THE CHILD

Type of Case: **Child Offender (Robbery with violence).**

The subject says that he was in Makadara Market, in Athi-River Sub-County around 1900 Hrs. While making his way home, he said that along the way he saw a group of six (6) boys heading towards the direction he was going and decided to follow them from a distance. The subject said the initial group bumped into yet another group of boys and a scuffle ensued, he said both

groups of the boy gang scattered into thin air leaving items sprawled down on the ground, out of curiosity and since he witnessed everything, he claims the items that were lying on the ground were a cap and a bag which he picked hurriedly and left.

In an unforeseen turn of events which he never envisaged, since he thought no one was watching, a section group of boys who were initially engaged in a confrontation harassed and roughed him up and insisted that he hand over the mobile phone that he had with him, they continued beating him and also started asking for the rest of the items he had confiscated. The subject said this attracted the general public who intervened and told them that if he is indeed guilty, they should go and file an official report to the Police Station and file charges.

SUBJECT'S PRAYERS

The subject prays that the complainant should not mistake him for his friend, and he was not with him rather he was just heading home and was caught up with the wrong events, at the wrong place and at the wrong time. He added that he was deeply remorseful and said that he will not associate himself with local gangs and from this point onwards mind his own business.

Needs of the child: The child needs correction, counseling, in addition, she is also a child being in need of care and protection contrary to section **144 (j), (v) of the Children's Act 2022**. She also needs to be equipped with skills and knowledge, to enable him eke an honest living when he shall eventually be discharged from the institution.

Child's character: Not Good.

Risk factors of the child: The subject was a form (2) two dropout, a total orphan and now he is associated with local criminal gangs and bad groups contrary to section **144 (a), (j), (q) of the Children's Act 2022**. As read with section **144 (bb), (hh) of the Children's Act 2022**

INTERVENTION: For the best interest of the child, it is my formed opinion that the matter was to be diverted as guided by section **227 (2) of the Children's Act 2022** however this is not possible since the offence he was charged with is a capital offence contrary to section **227 (2) (c) of the Children's Act 2022**, although what he states is different. The subject should be enrolled in a statutory institution preferably Boarstal

**RECOMMENDATIONS AND COMMENTS BASED ON THE BEST INTEREST OF
THE CHILD:**

Your Honor before court is a child aged approximately sixteen (16) years. The child needs counseling, guidance, rehabilitation and correction. Your Honor it is my prayer that the subject be committed in a Boarstal institution, since he almost clocking the age of majority and needs to be in an environment that sharpens his skills and not associate himself with crime. All this however subject to the discretion of this Honorable Court.

Thankyou.

REPORT PREPARED BY:

DENNIS MUTHUI KAGECHU.

A handwritten signature in black ink, appearing to read 'Dennis Muthui Kagechu', with a long horizontal stroke extending to the right.

FOR: SUB-COUNTY CHILDREN'S OFFICER,

ATHIRIVER SUB-COUNTY, MACHAKOS COUNTY.